



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

**SB 1538: moving violations; AZPOST-certified officer; prosecutors
S/E: controlled substances; approval; workers' compensation**

BIASIUCCI FLOOR AMENDMENT

1. Adds, as session law, federal monies that are disbursed to this State for MDMA research must be transferred to Arizona State University's medical school to conduct such research.
2. Repeals the requirement on January 1, 2029.

BIASIUCCI FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1538
(Reference to PUBLIC SAFETY & LAW ENFORCEMENT S/E Committee amendment)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Strike everything after the enacting clause and insert:

3 "Section 1. Title 23, chapter 6, article 4, Arizona Revised
4 Statutes, is amended by adding section 23-973, to read:

5 23-973. Coverage; midomafetamine; firefighters; peace
6 officers; post-traumatic stress disorder; annual
7 report; definitions

8 A. EMPLOYERS SHALL PROVIDE WORKERS' COMPENSATION COVERAGE TO
9 FIREFIGHTERS AND CERTIFIED PEACE OFFICERS WHO HAVE BEEN DIAGNOSED WITH
10 POST-TRAUMATIC STRESS DISORDER BY A LICENSED MENTAL HEALTH PROFESSIONAL
11 AND WHO HAVE AN ACCEPTED WORKERS' COMPENSATION CLAIM FOR POST-TRAUMATIC
12 STRESS DISORDER UNDER THIS TITLE. IF AN INDEPENDENT MEDICAL EXAMINATION
13 REVEALS THAT A TREATMENT PROTOCOL OF MIDOMAFETAMINE IS DEEMED A REASONABLE
14 AND NECESSARY TREATMENT AND FOLLOWS THE TREATMENT GUIDELINES ESTABLISHED
15 BY THE COMMISSION, WORKERS' COMPENSATION COVERAGE MAY INCLUDE ONE COMPLETE
16 COURSE OF A TREATMENT PROTOCOL OF MIDOMAFETAMINE AS PRESCRIBED BY A
17 PSYCHIATRIST.

18 B. MIDOMAFETAMINE PRESCRIBED UNDER THIS SECTION MUST MEET THE
19 REQUIREMENTS UNDER TITLE 36, CHAPTER 27 FOR A CONTROLLED SUBSTANCE.

20 C. ON OR BEFORE JANUARY 1, 2029 AND EACH JANUARY 1 THEREAFTER, THE
21 COMMISSION SHALL SUBMIT TO THE JOINT LEGISLATIVE BUDGET COMMITTEE A REPORT
22 OF THE COSTS OF TREATMENT FOR MIDOMAFETAMINE UNDER THIS SECTION FOR
23 FIREFIGHTERS AND CERTIFIED PEACE OFFICERS.

24 D. FOR THE PURPOSES OF THIS SECTION:

25 1. "CERTIFIED PEACE OFFICER" HAS THE SAME MEANING PRESCRIBED IN
26 SECTION 38-842.

27 2. "FIREFIGHTER" MEANS A PROFESSIONAL FIREFIGHTER WHO IS A MEMBER
28 OF A CITY, TOWN, COUNTY OR FIRE DISTRICT FIRE DEPARTMENT.

1 3. "LICENSED MENTAL HEALTH PROFESSIONAL" MEANS AN INDIVIDUAL WHO
2 SPECIALIZES IN TRAUMA AND CRISIS, WHO USES EVIDENCE-BASED TREATMENT
3 OPTIONS AND WHO IS LICENSED AS EITHER:

4 (a) A PSYCHIATRIST PURSUANT TO TITLE 32, CHAPTER 13 OR 17.

5 (b) A PSYCHOLOGIST PURSUANT TO TITLE 32, CHAPTER 19.1.

6 4. "TREATMENT PROTOCOL OF MIDOMAFETAMINE" MEANS A PROCESS OF
7 TREATMENT THAT HAS RECEIVED APPROVAL FROM THE UNITED STATES FOOD AND DRUG
8 ADMINISTRATION FOR POST-TRAUMATIC STRESS DISORDER AND THAT USES
9 MIDOMAFETAMINE IN CONJUNCTION WITH THERAPY SESSIONS.

10 Sec. 2. Section 36-2511, Arizona Revised Statutes, as amended by
11 Laws 2021, chapter 61, section 12, is amended to read:

12 36-2511. Nomenclature

13 The controlled substances listed or to be listed in the schedules in
14 sections 36-2512, 36-2513, 36-2514, 36-2515, 36-2516, ~~and~~ 36-2517 AND
15 36-2517.03 or the rules adopted pursuant to this article are included by
16 whatever official, common, usual, chemical or trade name designated.

17 Sec. 3. Section 36-2511, Arizona Revised Statutes, as amended by
18 Laws 2025, chapter 231, section 1, is amended to read:

19 36-2511. Nomenclature

20 The controlled substances listed or to be listed in the schedules in
21 sections 36-2512, 36-2513, 36-2514, 36-2515, 36-2516, 36-2517, ~~and~~
22 36-2517.02 AND 36-2517.03 or the rules adopted pursuant to this article
23 are included by whatever official, common, usual, chemical or trade name
24 designated.

25 Sec. 4. Title 36, chapter 27, article 2, Arizona Revised Statutes,
26 is amended by adding section 36-2517.03, to read:

27 36-2517.03. United States food and drug administration;
28 approved medication; rescheduling

29 ANY COMPOUND, MIXTURE OR PREPARATION THAT CONTAINS 3,
30 4-METHYLENEDIOXYMETHAMPHETAMINE AND THAT IS APPROVED BY THE UNITED STATES
31 FOOD AND DRUG ADMINISTRATION AND RESCHEDULED BY THE UNITED STATES DRUG
32 ENFORCEMENT ADMINISTRATION TO A SCHEDULE OTHER THAN SCHEDULE I OF THE
33 CONTROLLED SUBSTANCES ACT (P.L. 91-513; 84 STAT. 1242; 21 UNITED STATES
34 CODE SECTIONS 801 THROUGH 904) IS A CONTROLLED SUBSTANCE FOR THE PURPOSES
35 OF THIS CHAPTER AND MAY BE PRESCRIBED IN THIS STATE.

36 Sec. 5. Conditional enactment; notice; industrial commission
37 duties

38 A. Section 23-973, Arizona Revised Statutes, as added by this act,
39 does not become effective unless on or before January 1, 2029 the United
40 States food and drug administration approves the use of midomafetamine to
41 treat post-traumatic stress disorder.

42 B. The executive director of the Arizona state board of pharmacy
43 shall notify the director of the Arizona legislative council and the
44 director of the industrial commission of Arizona in writing on or before
45 February 1, 2029 either:

46 1. Of the date on which the condition was met.

47 2. That the condition was not met.

48 C. On notification from the Arizona state board of pharmacy that
49 the condition has been met, the industrial commission of Arizona shall

1 assign reimbursement values in its schedule of fees and publish guidelines
2 on billing and reimbursement practices for midomafetamine.

3 Sec. 6. Conditional enactments: notice

4 A. Section 36-2511, Arizona Revised Statutes, as amended by Laws
5 2021, chapter 61, section 12 and this act, and section 36-2517.03, Arizona
6 Revised Statutes, as added by this act, do not become effective unless on
7 or before January 1, 2029 a 3, 4-methylenedioxymethamphetamine
8 investigational product is newly approved as a prescription medication
9 pursuant to 21 United States Code section 355 and is controlled under a
10 federal interim final rule issued pursuant to 21 United States Code
11 section 811(j) and published in the Federal Register.

12 B. Section 36-2511, Arizona Revised Statutes, as amended by Laws
13 2025, chapter 231, section 1 and this act, does not become effective
14 unless both the condition prescribed by Laws 2025, chapter 231, section 5,
15 subsection A is met and on or before January 1, 2029 a 3,
16 4-methylenedioxymethamphetamine investigational product is newly approved
17 as a prescription medication pursuant to 21 United States Code section 355
18 and is controlled under a federal interim final rule issued pursuant to 21
19 United States Code section 811(j) and published in the Federal Register.

20 C. The executive director of the Arizona state board of pharmacy
21 shall notify in writing the director of the Arizona legislative council on
22 or before February 1, 2029 either:

23 1. Of the date on which the condition was met.

24 2. That the condition was not met."

25 <<Sec. 7. Federal monies: research: midomafetamine: Arizona
26 State University medical school; delayed repeal

27 [A. If federal monies are disbursed to this state for
28 midomafetamine research, the federal monies must be transferred to Arizona
29 State University's medical school to conduct midomafetamine research.

30 B. This section is repealed from and after December 31, 2028.]>>

31 Enroll and engross to conform

32 Amend title to conform

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